

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #11	CCRB Case #: 202206124	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 04/11/2022 8:39 PM, Monday, 04/11/2022 11:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/11/2023	Precinct: 101		
Date/Time CV Reported Mon, 09/12/2022 10:02 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 09/12/2022 10:02 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jaipaul Ramdat	05369	953290	NARCBQS
2. Officers			
3. LT William Beneventano	00000	921970	NARCBQS
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Warren Savage	03257	929132	NBQS MAJOR
2. CPT Charles Campisi	00000	928008	DBQS
3. LT CD Eric Sonnenberg	00000	931250	NBQS MAJOR
4. SGT Brendan Meehan	03829	933012	NARCBQS
5. DT3 Daniel Ludemann	04386	938892	NBQS MAJOR
6. DT3 Alexander Taveras	04809	947952	NARCBQS
7. DT3 Ramon Garcia	06082	947650	NARCBQS
8. DT2 Brian Ritto	04361	942432	NBQS MAJOR
9. DT3 Juan Moreno	07175	930779	NBQS MAJOR
10. DT3 Fernando Sanchez	04010	939411	NARCBQS
11. DT3 Edwin Estrada	02015	933767	NARCBQS
12. SGT Michael Russo	00375	949593	NARCBQS
13. SGT Michael Grasso	01677	938608	NARCBQS

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: An officer threatened to damage § 87(2)(b)'s property.	A . Officer(s) Unidentified
B . Officers	Abuse: Officers drew their guns.	B . Officer(s) Unidentified
C . LT William Beneventano	Abuse: Lieutenant William Beneventano entered § 87(2)(b) in Queens.	C . Unable to Determine
D . LT William Beneventano	Abuse: Lieutenant William Beneventano searched § 87(2)(b) in Queens.	D . Within NYPD Guidelines
E . LT William Beneventano	Abuse: Lieutenant William Beneventano failed to provide § 87(2)(b) with a business card.	E . Substantiated
F . DT3 Jaipaul Ramdat	Abuse: Detective Jaipaul Ramdat searched § 87(2)(b) in Queens.	F . Within NYPD Guidelines
G . DT3 Jaipaul Ramdat	Abuse: Detective Jaipaul Ramdat damaged § 87(2)(b)'s property.	G . Within NYPD Guidelines

Case Summary

On September 12, 2022, § 87(2)(b) filed this complaint with the CCRB online.

On April 11, 2022, at 8:39 p.m., Lieutenant William Beneventano and Det. Warren Savage of Narcotics Borough Queens South came to § 87(2)(b)'s home located at § 87(2)(b) in Queens to freeze the location. § 87(2)(b) heard knocking and came to the door where an unidentified officer allegedly stated he would knock down the door if § 87(2)(b) did not open it (**Allegation A: Abuse of Authority, officer unidentified**). § 87(2)(b) observed five to six officers through the peephole, some of whom allegedly had guns drawn, and opened the door (**Allegation B: Abuse of Authority, officers unidentified**).

Lieutenant Beneventano, Det. Savage, and the other unidentified officers on scene entered § 87(2)(b)'s apartment (**Allegation C: Abuse of Authority, unable to determine**) and searched the premises (**Allegation D: Abuse of Authority, within NYPD guidelines**). § 87(2)(b) left the location and Lieutenant Beneventano never provided him with a business card (**Allegation E: Abuse of Authority, substantiated**).

§ 87(2)(b) returned the following morning and observed that the apartment had been searched and that his safe was broken (**Allegations F and G: Abuse of Authority, within NYPD guidelines**).

This incident resulted in no summonses or arrests.

This case was delayed because § 87(2)(b) filed the complaint five months after the incident occurred and for an additional four months because the investigation received erroneous NYPD document request results pertaining to the search warrant before receiving the correct search warrant from Narcotics Borough Queens South.

Because the officers involved in this case are members of the of the Narcotics Division, they were not equipped with body-worn cameras.

Findings and Recommendations

Allegation (A) Abuse of Authority: An officer threatened to damage § 87(2)(b)'s property.

Allegation (B) Abuse of Authority: Officers drew their guns.

§ 87(2)(b) stated (**BR 01**) that he heard knocking on the door and assumed the knocking on the door was for his uncle, § 87(2)(b), who he lived with. § 87(2)(b) had left the apartment approximately 30 minutes prior. The knock became harder, so § 87(2)(b) went to ask who it was, and they said it was the police and an officer informed him that if he did not open the door, they would knock it down. § 87(2)(b) looked through the peephole and saw that there were six to seven male officers in plainclothes and § 87(2)(b) also observed a riot shield, a battering ram, and that their guns were drawn. § 87(2)(b) opened the door and put his hands up. § 87(2)(b) did not remember how many officers had their guns drawn and was not sure whether the guns were pointed at him.

Lieutenant Beneventano (**BR 02**) stated that he and three to four detectives were instructed by the Queens District Attorney's office to freeze the location, meaning no one could go in or exit or tamper with any evidence. Lieutenant Beneventano did not recall which detectives he was with. Lieutenant Beneventano was the highest-ranking member of service present at this time. Lieutenant Beneventano and the detectives knocked on the door and § 87(2)(b) answered. Lieutenant Beneventano and the detectives explained that § 87(2)(b) had been arrested at the 101st Precinct for serious charges and that they needed to freeze the location while a search warrant was obtained.

Lieutenant Beneventano did not recall the specifics of the conversation with § 87(2)(b) prior to him opening the door. Lieutenant Beneventano did not know who knocked on the door and did not recall hearing any detective state they would take the door down if § 87(2)(b) did not open it. Lieutenant Beneventano did not recall himself or any of the detective with their guns drawn.

Det. Savage (**BR 03**) stated that he went to the location with Lieutenant Beneventano and

that no one threatened to break down the door and no one had their guns drawn.

Det. Ramdat (**BR 04**) confirmed that he was not present during this portion of the incident and that he was never informed that any of the members of service who came to freeze the location had guns drawn. Per Det. Ramdat's memo book (**BR 05**), at 8:00 p.m. he was at the 101st Precinct stationhouse which he explained during his CCRB interview that he was processing § 87(2)(b) arrest at this time. At 10:10 p.m., Det. Ramdat went to Queens Criminal Court to obtain the search warrant.

A Search Warrant Pre-Execution Plan (**BR 06**) was prepared which contained a list of members of service and their assignments, none of which indicated who froze the apartment. Lieutenant Beneventano explained (**BR 02**), however, that the document was prepared in the event that a no-knock search warrant might be executed, which proved unnecessary.

Memo books (**BR 07**) were obtained from Det. Juan Moreno, Det. Fernando Sanchez, Det. Edwin Estrada, Det. Ramon Garcia, Det. Daniel Ludemann, Det. Alexander Taveras, Det. Brian Ritto, Lieutenant Eric Sonnenberg, Sgt. Brendan Meehan, Sgt. Michael Russo, and Sgt. Michael Grasso of Narcotics Borough Queens South none of which showed any entries placing them at the location when Lieutenant Beneventano and Det. Savage froze the location. Lieutenant Beneventano's memo book and (**BR 08**) Det. Savage's memo book (**BR 09**) both contained entries placing them at the location at the time of the incident. § 87(2)(b) was only able to provide descriptions of two officers, which most closely matched Lieutenant Beneventano's (**BR 10**) and Det. Savage's (**BR 11**) pedigree information however he did not attribute the threat of property damage or guns drawn allegation against either.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as *officer(s) unidentified*.

Allegation (C) Abuse of Authority: Lieutenant William Beneventano entered § 87(2)(b) in Queens.

Allegation (D) Abuse of Authority: Lieutenant William Beneventano searched § 87(2)(b), in Queens

Allegation (E) Abuse of Authority: Lieutenant William Beneventano failed to provide § 87(2)(b) with a business card.

It was undisputed that Lieutenant Beneventano and Det. Savage entered § 87(2)(b)'s apartment prior to the search warrant being signed (**BR 12**).

§ 87(2)(b) stated (**BR 01**) that the officers told him to step out of his apartment into the hallway. § 87(2)(b) asked what was going on and an officer told him that something had happened which gave them probable cause and allowed them to come into the apartment. The officers did not provide any additional details and did not ask permission to go inside. § 87(2)(b) was instructed to wait outside of the apartment while they searched the apartment. § 87(2)(b) could see into part of the apartment, including the living room and the back of the apartment, and observed that an officer went inside his bedroom. The officers told § 87(2)(b) that he had to leave the building and that he could not stay overnight. The officers explained that they had to finish the search in the morning. No officer provided a business card.

Lieutenant Beneventano (**BR 02**) stated § 87(2)(b) allowed them into the living room by opening the door, and they spoke with § 87(2)(b) for "quite a while." Lieutenant Beneventano did not remember what § 87(2)(b) said to allow the officers inside and he did not remember the specifics of any conversation regarding the officers going inside. A security sweep was performed to ensure there were no armed individuals hiding in the tub or closets. § 87(2)(b) packed a bag and left the location. Lieutenant Beneventano did not have any prior knowledge of § 87(2)(b) and did not know he was going to be there.

Lieutenant Beneventano (**BR 13**) did not provide § 87(2)(b) with a business card before

§ 87(2)(b) left the location. Lieutenant Beneventano did not observe Det. Ramdat provide a business card or leave one in the apartment. Lieutenant Beneventano stated that § 87(2)(b) exchanged contact information with one of the detectives on scene as he was trying to figure out when he would come back to the apartment after the search warrant was executed. Lieutenant Beneventano did not remember whether the contact information was exchanged on a business card or on a piece of paper and did not know which detective it was, but he believed the detective provided a name and phone number to § 87(2)(b) and § 87(2)(b) provided his phone number in return.

Det. Savage stated (**BR 03**) that officers asked § 87(2)(b) to come in and he said, "Okay." Det. Savage did not specify who asked § 87(2)(b). No one explained to § 87(2)(b) that he could say no. Det. Savage walked around, opened doors, and looked under the bed to make sure no one was hiding. § 87(2)(b) was in the apartment for approximately two minutes and then left the location.

Det. Ramdat stated (**BR 04**) he was on a long-term investigation into § 87(2)(b) and on April 11, 2022, § 87(2)(b) shot someone, and the victim was in the hospital. Det. Ramdat intercepted a call via a Title III wiretap in which § 87(2)(b) admitted to shooting the individual and stated he was going to store the guns at a separate location. Det. Ramdat tracked § 87(2)(b) phone GPS to his and § 87(2)(b)'s home. Det. Ramdat and unidentified officers chased § 87(2)(b) outside, recovered a gun that he threw on the ground, and arrested him. An assistant district attorney instructed Det. Ramdat to freeze the location and to apply for search warrants. § 87(2)(b) left before Det. Ramdat ever arrived at the location.

§ 87(2)(b) who lived at the location, was arrested immediately prior to his incident § 87(2)(b).
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

In People v. Satornino, 153 A.D.2d 595 (1989) (**BR 16**) the court found that consent to enter without a warrant can be established by conduct as well as words.

In People v. Green, 480 N.Y.S.2d 220 (1984) (**BR 17**) the officer had probable cause to believe the weapon was in the apartment. He did not know who else was in the apartment, but he did know he had encountered at least two people in the apartment who he was unaware would be there when he entered the apartment. Under these circumstances, the officer had a right to conduct a security check of the premises to search for other persons who could pose a threat to the safety of the officers present or destroy evidence. The court found that under certain circumstances immediately following an arrest, law enforcement officers without a warrant may be permitted to conduct a security check -- a very quick and limited pass through the premises to check for third persons who may destroy evidence or pose a threat to the officers. The reasonableness of a security check is simple and straightforward. From the standpoint of the individual, the intrusion on his privacy is slight; the search is cursory in nature and is intended to uncover only 'persons, not things.' The delay attendant upon obtaining a warrant could enable accomplices lurking in another room to destroy evidence. More important, the safety of the arresting officers or members of the public may be jeopardized.

NYC Administrative Code § 14-174 (**BR 18**) and NYPD Administrative Guide procedure 304-11 (**BR 19**) state that officers are to offer a business card at the conclusion of a law enforcement activity including the search of a home, for activities that do not result in an arrest or summons.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). Therefore, it is recommended that **Allegation C** be closed as *unable to determine*.

§ 87(2)(g)

§ 87(2)(g)

. It is therefore recommended that **Allegation D** be closed as *within NYPD guidelines*.

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be *substantiated*.

Allegation (F) Abuse of Authority: Detective Jaipaul Ramdat searched § 87(2)(b) **, in Queens.**

Allegation (G) Abuse of Authority: Detective Jaipaul Ramdat damaged § 87(2)(b) **s property.**

§ 87(2)(b) stated (**BR 01**) that he returned to his apartment the following morning and observed in his bedroom that a suitcase had been opened and his safe was broken. Property in the kitchen and living room had been moved around and the closet in the hallway had been opened. § 87(2)(b) room had been thoroughly searched.

Det. Ramdat stated (**BR 04**) that at approximately 11:30 p.m., he went to the location for a walkthrough and spoke to Det. Savage who informed him of where he found the clothing that § 87(2)(b) was wearing during the shooting and where he found narcotics. § 87(2)(b)

Det. Ramdat did not recall breaking into a safe but stated that the search warrant would have given them authority to do so.

Det. Savage (**BR 03**) confirmed that besides the security sweep, the apartment was searched only after the search warrant was signed.

§ 87(2)(b)

New York Consolidated Laws Service Criminal Procedure Law § 690.15 (**BR 20**) states that a search warrant must direct the search of one or more of the following: (a) A designated or described place or premises; (b) A designated or described vehicle; and/or (c) A designated or described person.

In Onderdonk v. State 648 N.Y.S2d 214 (1996) (**BR 21**) the court found that officers may damage property only if it is reasonably necessary to carry out their duties.

§ 87(2)(g)

it is therefore recommended that **Allegations F and G** be closed as *within NYPD guidelines*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 22**).
- Lieutenant Beneventano has been a member of service for 24 years and a subject in one additional CCRB complaint and one allegation which was not substantiated.
 - § 87(2)(g)
- Det. Ramdat has been a member of service for 10 years and named a subject in two additional CCRB complaints and five allegations, two of which were substantiated.

- Mediation, Civil, and Criminal Histories**
- This complaint was not suitable for mediation.
 - As of April 11, 2023, the New York City Comptroller's Office has no record of a Notice of Claim being filed regarding this incident (**BR 23**).
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Investigator:	<u>Kelly Lyon</u>	<u>Inv. Kelly Lyon</u>	<u>06/02/2023</u>
	Signature	Print Title & Name	Date
Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Pena</u>	<u>06/02/2023</u>
	Signature	Print Title & Name	Date
Reviewer:	<u> </u>	<u> </u>	<u> </u>
	Signature	Print Title & Name	Date